

them for lack of information or belief. It may also be that after a trial it will appear that plaintiffs are entitled to financial sanctions under subdivision (c), section 2034 of the Code of Civil Procedure. We do not see, however, how any court can force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions.”].) If Defendant fails to provide certain information in some requests and not others this court cannot force them to do otherwise and Defendant can anticipate the consequences of not fully answering interrogatories when litigation comes about.

Here, the court finds sanctions appropriate. Pursuant to California Rule of Court Rule 3.1348, subdivision (a), “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ...the requested discovery was provided to the moving party after the motion was filed. The court does not find any substantial justification for Defendant not providing the requested discovery during the initial request. However, the court does find that supplemental responses have been provided and a majority of which are code-compliant, therefore the court finds the requested amount to be unjust. The court orders Defendant to pay sanctions in the amount of \$500.

2. 9:00 AM CASE NUMBER: C23-00676
CASE NAME: NADIA HAMADE VS. HELGE THEISS-NYLAND
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD, SET 2**
FILED BY: HAMADE, NADIA
TENTATIVE RULING:

Plaintiff’s Motion to Compel further responses to Requests for Production, Set 2 is GRANTED IN PART and DENIED IN PART. Plaintiff’s request for sanctions is GRANTED, but reduced.

Plaintiff provided Defendant with 43 Requests for Production (Nos. 71-113), in Set Two. Defendant’s initial responses were objections only with no substantive responses. Subsequently, Defendant maintains they served substantive supplemental responses to all 43 requests on September 2, 2026.

The court reviewed all 43 responses by Defendant and ORDERS further responses to Requests for Production Nos. 77, 88, 89, 91, 92, 93, 97, 98, 99, 100, 101, 102, 104, 105, 106, 107, 110, 111, 112, and 113.

Request No. 77: Defendant maintains that no documents ever existed in response to this request but fails to indicate that a diligent search was conducted to make that determination (whereas they did report such a search in Nos. 78-79, 83, 90.) (See Cal. Code of Civ. Proc. § 2031.230: A representation of inability to comply affirms a diligent search and reasonable inquiry, specifies why (never existed, destroyed, lost, stolen, or not in the party's control), and names any person believed to have the item.)

Request Nos. 88, 89, 91, 92, 93, 97, 98, 99, 100, 104, 105, 106, 107, 110, 111, 112, 113:

Defendant provides the same response—Defendant has already produced all documents responsive to this request that are in its possession, custody, or control—without reference to any bates stamped pages or any identifying information for such documents. (See Cal. Code of Civil Procedure §2031.280, subdivision (a), requiring the documents or category of documents be identified with the specific request number to which the documents respond.)

Requests Nos. 101-102: Defendant maintains that they will produce all non-privileged documents in response to these requests. However, according to Plaintiff, Defendant failed to provide any support for their asserted privileges, such as a privilege log, and cannot unilaterally narrow the response to the requests without such support. “The need for a privilege log would arise after a plaintiff properly moved to compel further responses to contest defendant’s conclusory attorney-client and work product objections pursuant to Code Civ. Proc., § 2031, subd. (m). The privilege log would permit the court to determine whether a specific document was or was not privileged.” (*Best Products, Inc. v. Superior Court* (2004) 119 Cal. App. 4th 1181, 1189.) California Code of Civil Procedure §2031.240(b) requires that if the “responding party objects to the demand for inspection the response must both (1) identify withheld items with particularity, and (2) state specific grounds; privilege or work-product claims require sufficient factual information, including a privilege log if necessary.” (*Id.*)

The court DENIES all other requests for further production of documents including responses to Request Nos. 108-109. The court finds that Plaintiff’s request for “all settlement agreements, separation agreements, or releases signed by any current or former Bay City Mechanical employee since February 1, 2015, to resolve any allegations of harassment, discrimination, retaliation, or hostile work environment claims” and “all documents concerning any payment or benefit provided to any Bay City Mechanical employee in exchange for resolving claims of harassment, discrimination, retaliation, or hostile work environment claims since February 1, 2015” do implicate the privacy rights of third parties that requires additional processes to ensure their rights are protected and a general protection order would not appear to lend this protection.

The court finds sanctions appropriate. Pursuant to California Civil Code of Procedure §2031.310(h), “the court *shall* impose a mandatory monetary sanction against any party who unsuccessfully makes or opposes a motion to compel further response to a demand for inspection, unless the court finds that the party subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (*Id.*) Defendant provided not substantial justification for their failure to initially comply with all requests or their subsequent failure on the aforementioned requests. However, the court finds the amount unreasonable and ORDERS Defendant to pay sanctions in the amount of \$500.

3. 9:00 AM CASE NUMBER: C23-01947

CASE NAME: ATHINA HUERTA VS. EAST BAY CARDIOVASCULAR AND THORACIC ASSOCIATES, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL 2ND FURTHER RESPONSES TO PROD OF DOCS, FILED 4/17/26 / PREV. SET ON 9/18/26 IN DEPT 32. RESET IN DEPT 20 FOR THIS HEARING ONLY.**

FILED BY: HUERTA, ATHINA

TENTATIVE RULING: